Rakesh Kumar Mitwa @ Aftab Alam & 4 Others vs State Of U.P. & Anr. on 26 September, 2019

Author: Dinesh Kumar Singh

Bench: Dinesh Kumar Singh

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HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH


?Court No. - 13


Case :- CRIMINAL REVISION No. - 1299 of 2019


Revisionist :- Rakesh Kumar Mitwa @ Aftab Alam & 4 Others

Opposite Party :- State Of U.P. & Anr.

Counsel for Revisionist :- Bal Krishna Shukla

Counsel for Opposite Party :- Govt. Advocate


Hon'ble Dinesh Kumar Singh,J.
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1. The present revision petition has been filed against the judgment and order dated 30.08.2019 passed by the District Judge, Bahraich in Criminal Appeal No.18 of 2019 under Section 29 of the Protection of Women from Domestic Violence Act (for short 'DV Act') filed by the revisionists herein.

2. The aforesaid appeal was filed by the revisionist against the ex parte order dated 12.07.2019 passed by the learned A.C.J.M., Bahraich in Case No.143 of 2014 under Section 12/18 of the DV Act whereby the learned Magistrate has directed the revisionist No.1 to pay Rs.2,500/- per month as maintenance. The appellate Court has observed that there was no sufficient ground to interfere with the order passed by the learned Magistrate.

3. Learned Counsel for the revisionists submits that before filing the application under Section 12/18 of the DV Act, respondent No.2 had already filed an application under Section 125 Cr.P.C. before the Family Court/Addl District and Sessions Judge(Fast track Court No.2), Bahraich in which on 29.08.2017 an order for interim maintenance @ Rs.2,000/- was passed in favour of respondent No.2. It is also submitted that revisionist No.1 is paying Rs.2,000/- per month as maintenance granted by the family Court. He, therefore, submits that while passing the order under Section 12/18 of the DV Act, the court should have considered the order passed under Section 125 Cr.P.C. and the amount awarded under Section 125 Cr.P.C. should have been adjusted while granting maintenance under Section 12/18 of the DV Act.

4. The petition is disposed of with liberty to the revisionists to approach the Family Court/Domestic Violence Court for modification of the order in view of Section 126(2) Cr.P.C. as well as under Section 26 of the DV Act as the case may be. If such an application is filed for modification of the order of maintenance, the concerned court shall decide the said application in accordance with law after giving opportunity of hearing to the parties expeditiously.

Order Date :- 26.9.2019 prateek